

HOUSE BILL 1238

By Haston

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 49, relative to the division of early child care
and education in the department of education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 1, Part 2, is amended by
adding the following as a new section:

(a) As used in this section, "department" means the department of education.

(b)

(1) There is created in the department a division to be known as the
division of early child care and education. The division must be created no later
than December 31, 2026.

(2) The commissioner shall appoint the director of the division. The
director of the division reports directly to the commissioner.

(3) The division has administrative responsibility for:

(A) All child care and early educational services as defined in part
11 of this chapter; chapter 6, of this title; and title 71, chapter 3, part 5 that
are funded through state or federal monies, including, but not limited to:

(i) The Child Care and Development Block Grant Act (42
U.S.C. § 9858 et seq.) and Child Care and Development Fund (45
CFR Part 98);

(ii) The voluntary pre-kindergarten program;

(iii) The Individuals with Disabilities Education Act (20
U.S.C. § 1400 et seq.) for children before kindergarten;

(iv) Head Start programs in this state; and

(v) Programs that are funded through the preschool development grant (§ 9212(c)(1) of the Every Student Succeeds Act, Pub. L. No. 114-95); and

(B) A unified early child care and education system that includes, but is not limited to:

(i) A uniform child care licensing and regulatory system that:

(a) Protects child health and safety, but otherwise prioritizes reducing regulatory burdens and simplifying processes for early childhood care and education providers;

(b) Aligns rules for all child care and early learning programs operated in pre-kindergarten through grade twelve (pre-K-12) schools by non-school entities with the department's requirements for such programs run by the schools themselves, so long as the alignment does not prevent the programs from receiving federal child care funds; and

(c) Incorporates a process for supporting safe and healthy child care and education in programs that exist outside of standard licensing requirements;

(ii) A uniform accountability and quality rating and improvement system for publicly funded early child care and education programs that includes, but is not limited to:

(a) Quality ratings predictive of child learning;

(b) Measurement methods and instruments for high-quality instruction that include, but are not limited to, a tested and proven, evidence-based observational instrument that assesses classroom quality, that includes assessing multiple dimensions of teacher-child interactions that are linked to positive child development, early language and literacy skills, and later achievement;

(c) A definition of kindergarten-readiness aligned with the state's early learning and development standards and the standards for elementary and secondary schools; and

(d) Quality improvement supports;

(iii) Mechanisms, such as community planning grants, to engage local communities in creating solutions that best meet their communities' unique early care and education needs;

(iv) An advisory council comprised of providers of early childhood care and education programs to help ensure the early child care and education system protects child health and safety but otherwise prioritizes reducing regulatory burdens and simplifying regulatory processes for early childhood care and education providers; and

(v) Mechanisms, such as surveys, for regular feedback from parents whose children participate in programs that are part of the unified early childhood care and education system.

(c)

(1) The department shall establish a two-part transition plan to establish the division of early child education and the unified early care and education system.

(2)

(A) To support the department in creating a transition plan pursuant to subdivision (c)(1), a transition advisory council is established to advise the department. The council must be staffed by persons within the department. The council shall convene no later than July 15, 2025, and meet at least monthly through December 2026. The council consists of the following members:

(i) The state's chief operating officer or the chief operating officer's designee;

(ii) One (1) nongovernment person with expertise in early child care and education, appointed by the governor;

(iii) One (1) nongovernment person with expertise in early child care and education, appointed by the speaker of the senate;

(iv) One (1) nongovernment person with expertise in early child care and education, appointed by the speaker of the house of representatives;

(v) The commissioner of education or the commissioner's designee;

(vi) The commissioner of human services or the commissioner's designee;

(vii) The state's Individuals with Disabilities Education Act (20 U.S.C. §§ 1400–1485 Part B-619) coordinator; and

(viii) The director of the Tennessee Head Start collaboration office.

(B) The members appointed under subdivisions (b)(2)(A)(v)-(vii) serve as ex officio nonvoting members.

(3) The transition advisory council shall advise the department in developing a two-part transition plan to:

(A) Develop and recommend a first phase of the transition plan to the governor for his approval no later than January 1, 2026. The first phase must include a plan to establish the division of early childhood care and education within the department, with such plan to include specific details regarding:

(i) Division staffing;

(ii) Timelines for completion;

(iii) Budgetary items;

(iv) Technology requirements;

(v) A cooperative endeavor agreement between the department and the department of human services that specifies the details and terms necessary for the transfer of lead agency authority for the Child Care and Development Fund (42 U.S.C. § 618) and responsibility for relevant programs, services, and contracts from the department of human services to the department. The transfer must include a continuation of contracts with existing partners, including, but not limited to, state child care

resource and referral centers, the Tennessee Early Childhood Training Alliance, the Association of Infant Mental Health in Tennessee, and Community Foundation of Middle TN; and

(vi) Any interdepartmental memorandums of understanding created to ensure there is no disruption to the programs and services during the transition; and

(B) Develop and recommend a second phase of the transition plan to the governor for his approval no later than October 1, 2026. The second phase must include a plan to establish the unified early childhood care and education system, with such plan to include processes and timelines to be approved by the general assembly.

(4)

(A) The department shall employ a contractor by July 1, 2025, to:

(i) Lead the department and the transition advisory council in the development of the two-part transition plan; and

(ii) Support the department's implementation of the transition plan.

(B) The contractor must have extensive and recent experience and expertise in guiding and overseeing the merging of state early care and education governance into a state department of education.

(5) The department shall require the contractor to include a process for input from stakeholders in transition planning for the unified early childhood care and education system, with such input to include the creation of a working group of fifteen (15) early childhood care and education providers selected by the

department to advise on the creation of the system, and other processes for stakeholder input.

(6)

(A) The department shall submit the first phase of the written transition plan to the governor for approval no later than January 1, 2026, and the second phase of the plan to the governor no later than October 1, 2026.

(B) The governor shall submit the approved plan to the following no later than January 15, 2026:

(i) The speaker of the senate;

(ii) The speaker of the house of representatives;

(iii) The senate education committee; and

(iv) The committee of the house of representatives with jurisdiction over subject matters pertaining to education.

(7) The department shall implement the first phase of the transition plan no later than December 31, 2026, and the second phase of the plan no later than July 1, 2027.

(d) Beginning January 1, 2027, the division of early childhood education shall:

(1) Create and publish a strategic plan for the unified early childhood care and education system, with input from local communities, providers, and parents in accordance with goals that include, but are not limited to:

(A) Affordable, accessible options and family choice;

(B) Positive early learning outcomes; and

(C) Efficient and user-friendly systems; and

(2) Submit a report by October 30 of each year to the general assembly on the progress made in creating and maintaining the strategic plan. The annual report must include any challenges to achieving such goals and recommended actions for how to address the challenges.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.